

Ruchika Mazumdar vs Himanshu Mitra on 8 December, 2020

Author: Hima Kohli

Bench: Hima Kohli, Subramonium Prasad

\$~12 (Supplementary)

* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ MAT.APP.(F.C.) 149/2020

RUCHIKA MAZUMDAR

..... Appellant

Through Mr. Tanmaya Mehta, Advocate with
Mr. Manish Gandhi, Advocate and appellant.

versus

HIMANSHU MITRA

..... Respondent

Through Ms. Jaya Goyal, Advocate with
respondent.

CORAM:

HON'BLE MS. JUSTICE HIMA KOHLI

HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD

ORDER

% 08.12.2020 HEARD THROUGH VIDEO CONFERENCING CM APPL. 31910/2020 (exemption)
Allowed, subject to all just exceptions.

CM APPL. 31911/2020 (by the appellant for condonation of 44 days delay in filing the appeal)

1. With the consent of the parties, the present application is allowed. The delay of 44 days in filing the appeal is condoned.

2. The application is disposed of.

MAT.APP.(F.C.) 149/2020 & CM APPL. 31908/2020 (by the appellant for stay of the impugned order) & CM APPL. 31909/2020 (for stay of proceedings before trial court)

1. The appellant/wife is aggrieved by the orders dated 16.9.2020 and 6.11.2020 passed by the learned Family Court, Saket whereunder, an application filed by the respondent/father under Section 26 of the Hindu Marriage Act (in short, 'HMA') has been allowed and he has been granted the custody of the minor son of the parties, aged four years and four and a half months, on every Saturday and Sunday. Vide order dated 6.11.2020, an application moved by the appellant/mother for revocation of the order dated 16.9.2020 has been dismissed by the learned Family Court.

2. Both the parties have logged into the virtual hearing alongwith their learned counsel. Records reveal that the marriage of the parties was solemnized on 30.4.2015. We are informed that this is the second marriage on both sides. They were blessed with a baby boy on 4.6.2016. It is not in dispute

that the parties had separated company in September, 2017 and the appellant has moved to her parental home where she is residing with the minor child. On 16.11.2019, the appellant has filed a petition for divorce against the respondent, which is pending before the learned Family Court, Saket. In the meantime, the respondent filed an application under Section 26 of the HMA on 7.3.2020, on which the impugned order has been passed.

3. Learned counsel for the parties state that from 24.8.2020, the respondent was given access to the minor child through a video call set up on a daily basis between 7 P.M. to 8 P.M. After passing the impugned order on 16.9.2020, the respondent has been picking up the minor child from the residence of the appellant at Dwarka and taking him to his residence at C.R. Park. This has happened on four Saturdays and the respondent did not kept the child overnight on the first three occasions; he did so only on the last occasion i.e. on 5-6.12.2020.

4. Mr. Mehta, learned counsel for the appellant/mother states that the child is too small for overnight custody to be granted in favour of the respondent/father and the mother is very anxious about the child's welfare.

Ms. Goyal, learned counsel for the respondent states that the child has been comfortable with the respondent during his visits and has spent quality time with him and the paternal grandparents.

5. After interacting with learned counsel for the parties not only in respect of the dispute, subject matter of the present appeal but also on other disputes pending between the parties including the divorce petition filed by the appellant against the respondent and both parties have agreed to break the ice, it is agreed that the initial visitation rights in respect of the child be confined to half a day on every Saturday. Accordingly, till further orders, it is directed that the respondent shall pick up the child from the residence of the appellant at Dwarka at 10 A.M. on every Saturday and take the child to his residence at C.R. Park. He shall not take the child out of his residential premises due to the COVID-19 pandemic. The respondent and his parents shall spend time with the child, who shall be brought back to the appellant's resident by 3 P.M. on the same day. For the appellant to ensure that the child is comfortable with the respondent and his family members during the visitations, the respondent shall arrange a video call between her and the child at around 12 P.M.

6. Having interacted with the parties and their learned counsel, we are also of the opinion that there is an element of settlement. Accordingly, with their consent and without prejudice to the rights and contentions of the parties, they are directed to appear before the Mediator, to be appointed by the Delhi High Court Mediation and Conciliation Centre, on 16.12.2020 at 11:00 A.M., for participating in the online mediation. The parties along with their respective counsel shall appear virtually before the Mediator. The learned Mediator shall have discussions with the parties and submit a report before the next date of hearing.

7. Operation of the impugned order is stayed till further orders.

8. List in the category of "Directions" for reporting settlement, if any, on 17.2.2021.

HIMA KOHLI, J SUBRAMONIUM PRASAD, J DECEMBER 8, 2020 NA/rkb